

In general, the First Amendment protects the right of drivers and passengers to record interactions with law enforcement in public spaces.

If you are recording, you should immediately make that clear. You do not have a right to interfere with the officer's lawful duties during the enforcement stop, and you should not reach into concealed areas to retrieve your recording device without the officer's permission. If your recording is not interfering with the officer's ability to lawfully do their job, an officer cannot confiscate your recording device, delete the recording, or destroy the device just because you are using it to record. In general, you also have the right to deny a request to unlock a cellular phone or provide a password to it, though under some circumstances, such as if you are on parole, you may have to give permission in response to such requests. Finally, no government employee can retaliate against you just because you recorded something in public.

Even if you believe your rights were violated, you should not engage in physical resistance or violence against the officer.

If an officer does something that you believe violates your rights, you can voice your objection, but you should not physically resist. Everyone has the right to be safe during a traffic stop. Your safety and the officer's safety could be jeopardized if the situation escalates with physical resistance or violence.

All members of the public have a right to file a complaint against any law enforcement agency, and it is against the law for any government employee to retaliate against you for doing so. You can file a complaint with the law enforcement agency that employs the officer. You have a right to be free from discrimination based on your actual or perceived race, sex, color, ethnicity, national origin, age, religion, gender identity or expression, sexual orientation, mental or physical disability, medical condition, or citizenship status. You also have other rights guaranteed by the United States and California Constitutions, as well as California and federal laws. When you file a complaint, the agency that employs the officer must investigate the complaint. Links to contact information for California law enforcement agencies can be found at post.ca.gov/le-agencies.